

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
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9:00 1 , 2	24CV453156	Javier Leyva et. al. vs General Motors	See Lines 1,2 below for ruling.
9:00 3	25CV470386	Moshe Ancomina vs Diana Romanov, et. al.	See Line 3 below for ruling.
9:00 4	25CV472651	Dee Morgan vs The Terrace of Los Altos Senior Living, et. al.	See Line 4 below for ruling.
9:00 5	24CV441941	Christian Lopez vs Andrew Lan, et. al.	Plaintiff moves this court to Compel Form Interrogatories. Discovery is generally permitted "regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action...if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence." (CCP section 2017.010) Plaintiff's motion is GRANTED.
9:00 6	24CV441941	Christian Lopez vs Andrew Lan, et. al.	Plaintiff moves this court to Compel Defendant to produce further documents. CCP 2031.010(b) requires production of documents that is in the party's "possession, custody, or control." Defend has produced documents in response to Plaintiff's requests and has specifically indicated that there is no other documentation within the Defendant's possession. Without further evidence that documents are being withheld, Plaintiff's Motion is DENIED.
9:00 7	24CV441941	Christian Lopez vs. Andrew Lan, et. al.	Plaintiff moves this Court to compel further responses to special interrogatories. An interrogatory is not objectionable because an answer to it involves an opinion or contention that relates to fact or the application of law to fact, or would be based on information or legal theories developed in anticipation of litigation. (Rafkind 22 Cal.App.4 th 1255, 1261.) Plaintiff's motion is GRANTED.
9:00 8	24CV443183	Shenna Huynh vs Redis Labs	Plaintiff moves court to strike defendant's answer and affirmative defenses. Defendant has violated two court orders with monetary sanctions imposed. Defendant was also warned of possible terminating sanctions for failure to comply. Defendant failed to comply due to a sudden medical emergency. Court is sympathetic to Plaintiff's frustration with Defendant. Court will deny Plaintiff's motion at this time—but will order deadline to produce Mr. John Gebhardt for deposition and will again admonish defendant about the possibility of terminating sanctions should this order not be complied with.
9:00 9	24CV443183	Shenna Huynh vs. Redis Labs	Plaintiff moves this court to compel production of documents. Court agrees with Defendant that RFP 11-13, 19, RFP20, 27, 30, and 31 requesting "all communications" is overbroad. Court does find that RFP24,25,36,37,58,70,and 72 are relevant. Court finds that RFP 47-48 are premature requests. Court finds that RFP 74-78 regarding sales performance as relevant.
9:00 10	24CV447415	Houman Hayatgheyb v. Stanford Health Care	Court had previously ordered for documents to be produced from Mr. Entwistle ad had continued the case for thirty days to produce documents. Case was set for discovery update.
9:00 11	23CV422621	Michael Hertz v. Mark Olivarez	Plaintiff moves this court to order and accounting from a partition referee. Defendant has resolved partition by exercising buy out procedure. Plaintiff's motion is DENIED.

Court 9:00 12	24CV432080	Serenity vs. Palo Alto Mind Body	Defendant moves this Court to reconsider order denying defendant's motion to dismiss defendant without prejudice and to maintain proceedings. Defendant does not offer any new set of facts as required by CCP 1008. Defendant's motion is DENIED.
9:00 13	25CV462289	James Cuevas vs FCA	Motion withdrawn.
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Line 1,2

Defendant, General Motors LLC's ("GM") demurrer to the fifth cause of action in Plaintiffs' first amended complaint ("FAC") and motion to strike punitive damages came on for hearing before the Court on January 15, 2026. Pursuant to California Rule of Court 3.1308, the Court issued its tentative ruling on January 14, 2026.

I. Alleged Facts

On August 7, 2015, Plaintiffs entered a warranty contract with GM for a 2015 GMC Sierra 1500, vehicle identification number 3GTU2VEC1FG291754 ("Subject Vehicle"), which was manufactured and/or distributed by GM and sold by Capitol GMC in San Jose, California. The contract warranted the Subject Vehicle "bumper-to-bumper", including but not limited to powertrain, emission, etc. (FAC ¶ 6) Prior to Plaintiffs purchasing the Subject Vehicle, GM knew that vehicles equipped with the same 6-speed transmission, as installed in the Subject Vehicle, suffered from one or more defects that could cause hesitation or delayed acceleration, harsh or hard shifting, jerking, shuddering, surging, acceleration, deceleration, or symptoms requiring reprogramming of the transmission control module ("TCM") and/or powertrain control module ("PCM"). ("Transmission Defect") GM acquired this knowledge through various sources of information, including but not limited to pre-production testing, pre-production design failure mode and analysis data, production failure mode and analysis data, early consumer complaints made exclusively to GM and its network of dealers, aggregate warranty data compiled from GM's network of dealers, testing conducted by GM in response to consumer complaints, and repair order and parts data received by GM from its network of dealers. (FAC ¶¶ 59-60)

GM and its directors, officers, employees, affiliates, and/or agents concealed the Transmission Defects from public and Plaintiffs. Had Plaintiffs known the Subject Vehicle and its transmission were defective